

**IN THE HONOURABLE SUPREME COURT OF THE REPUBLIC
OF LIBERIA, SITTING IN ITS MARCH TERM, A.D. 2016.**

BEFORE HIS HONOR: FRANCIS S. KORKPOR, SRCHIEF JUSTICE
BEFORE HIS HONOR: KABINEH M. JA'NEHASSOCIATE JUSTICE
BEFORE HER HONOR: JAMESETTA H. WOLOKOLIE.....ASSOCIATE JUSTICE
BEFORE HIS HONOR: PHILIP A.Z. BANKS, IIIASSOCIATE JUSTICE
BEFORE HER HONOR: SIE-A-NYENE G. YUGHASSOCIATE JUSTICE
Stephen Miamen, et, at of the city of MonroviaAppellants/Complainants

VersusAPPEAL

UNFAIR LABOR PRACTICE

The Management of Inter-Con Security Systems of Liberia, also of the city of Monrovia,
Liberia.....Appellee/Defendant

GROWING OUT OF THE CASE

Stephen Miamen, et, at of the city of Monrovia..... Petitioners/Complainants

Versus

PETITION FOR JUDICIAL
REVIEW

The Management of Inter-Con Security Systems of Liberia, also of the city of Monrovia,
Liberia... Respondent/Defendant

GROWING OUT OF THE CASE

Stephen Miamen, et, at of the city of Monrovia..... complainants

Versus

UNFAIR LABOR PRACTICE

The Management of Inter-Con Security Systems of Liberia, also of the city of Monrovia,
LiberiaDefendant

HEARD: March 29, 2016

DECIDED: September 8, 2016

The appellee in these proceedings is a security firm with several clients, inclusive of the American Embassy near Monrovia. On August 26, 2005, the American Embassy, via a letter, informed the appellee that as the embassy's security installations had been improved and upgraded, it had determined that the appellee's security guards assigned at the Embassy should be reduced from 220 (Two Hundred Twenty) to 178 (One Hundred Seventy Eight). The communication from the Embassy on this point reads thus:

"American Embassy
Monrovia, Liberia
Regional Security Office

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August 26, 2005

Memorandum for record

From: Peter Velazquez, Regional Security Officer

Subject: Guard Force Reduction U.S. Embassy

The United States Embassy in Monrovia is undergoing a massive reconstruction since 2004 to present. The purpose of the construction is to improve the physical security posture of the Embassy.

As a result of the new construction the guard force requirements will be reduced from two hundred and twenty (220) to one hundred and seventy eight (178) guards. No new guards will be hired.

All posts will be assigned new designations and duties once the October 2005 redundancy is completed."

The records reveal that thereafter, the appellee immediately proceeded and declared redundant some employees of its security guards assigned at the embassy, to include the present appellants. Accordingly, the redundant security guards were paid severance and each signed a release, relieving the appellee from all present and future financial obligations.

The appellants being dissatisfied over their redundancy retained the services of a lawyer who filed a complaint with the Ministry of Labor alleging that the appellants were illegally made redundant by the appellee in order to avoid the payment of pension and accusing the appellee of having coerced them into signing a release that they were not privy of reading. The appellants' complaint is quoted herein below, to wit:

"In Re: Complaint of Unfair Labour Practices against
The Management of the Inter-Con Security System

Dear Minister:

Our legal Services have been retained to carry the Legal interest of twenty three (23) former employees of the Inter-Con Security System. Some of the complainants worked for up to fifteen (15) years with the Security System and were closer to pension as in keeping with law.

The Management declared the complainants redundant and paid them one month for each year of service. No redundancy letter was issued the complainants except that the management made them to sign document which they were not privileged to read the contents. More besides, the Ministry of Labour was not a party to this exercise because of the illegal circumstances attending to the process.

What is more unacceptable is the fact that though the complainants herein were declared redundant, they were all immediately replaced with new employees. The act of replacing the complainants clearly demonstrate that the management made the decision to declare the complainants redundant to deny them of their possible pension benefits which contravenes the Labour Law. In keeping with the said Labour Law we are claiming the total of sixty (60) months for all those employees who worked for period up to 14 and 15 years. This means that whatever payments that were made to them will be deducted from their just entitlement.

For all other employees, we are claiming wrongful dismissal as in keeping with chapter one, section nine of the Liberia Labour Law consistent with their length of services.

The total claim for and on behalf of our clients is US\$168,306. 00.

Very truly yours,

James N. Gilayeneh, Sr.
Counsellor-At- Law/Legal Counsel"

At the hearing of the case, the appellants produced two witnesses in persons of Mr. Stephen T. Miamen and Mr. Harris G. Diah.

Mr. Stephen Miamen testified that the complaint had been filed on the behalf of those whom he referred to as 'the entire Guard Force under the US State Department' comprising of over 200 former employees. We quote hereunder, pertinent portions of the witness' testimony, to wit:

"Your Honour. we the complainants in an action of Unfair Labour Practices against the Management of Inter-Con including the entire members of the Guard Force under the State Department of over 200 employees were made redundant on the 21" of October 2005. No redundancy letters were issued

us, except that Management made us to sign documents but we were not privileged to read the contents. However, an attempt by one of our colleagues [to read the document and know] as to what the documents [were] about, was instantly dismissed — Paul B. Saydee, is the affected employee.

More besides we did not see neither observe the Labour Ministry's officials during the entire exercise of our redundancy.

Your Honour, what is even more unacceptable is the fact that, though we were declared redundant, yet some of us were immediately replaced with new employees. The Management re-employed some of our colleagues and had them occupy our posts and positions.

The Labour Standards Policy of first come last to go in redundancy was not adhered to but rather ignored as the whole process was geared towards the elimination of targeted employees under the disguise of being made redundant.

For the above reasons and many others, we have come today in pursuit of our complaint so as to be accorded impartial judgment and due process of law. And I rest."

During cross examinations the following questions were posed to witness Miamen on cross examination:

Ques: "Mr. witness [your] exhibit c/2 shows only 23 employees that have filed an action of unfair labour- practice before the Ministry of Labour yet your previous statement indicate that 200 employees were made redundant.

Please say for the benefit of this investigation why only 23 persons of the 200 have filed this action?

Ans. "the reason why we the complainants are here is the fact that of the 200 employees that were declared redundant by the management of Intercon nearly all of them were rehired except for us the complainants. We were replaced on our posts and positions.

Ques: "Mr. Witness, are you aware that each of the complainants signed a release discharging defendant/management from any or further claim?

Ans. "as I said during my earlier testimony, we signed documents but we were not privileged to read the contents."

We take keen interest in the above aspect of Mr. Miamen's testimony, reason

being, that the lawyer had stated in the complaint before the Ministry of Labor, that same was being filed on behalf of the twenty three (23) redundant employees of the Inter-Con Security System. Mr. Miamen's testimony of 200 former employees under the State Department of the United States of America is not only contradictory to the complaint, but seem to be an amendment to the said complaint. We state here, that if this was a case involving persons under the State Department of the United States of America the issue of jurisdiction would arise if indeed they were under the State Department of the United States of America. We are however certain that the witness's testimony was a misconstruction and misconception of the facts as observed from the certified records, as it was abundantly clear that all of the employees assigned at the embassy were employed by the appellee, a Liberian owned corporation. Additionally, we could never accept said statement as an amendment of the complaint, as to do so, would be giving credence to the violation of our statute on the procedure by which amendment can be made to any pleading. That is, the first pleading or in this case, the first complaint would have to be withdrawn and then subsequently replaced by a new one, to be served on the opposing party; and if the matter was before a court, that party effecting said amendment would have to pay all costs incurred by the opposing party in filing and serving its subsequent pleadings. Moreover, the witness proffered no proof of his assertion that 200 former employees were under the State Department of the United States of America, a sovereign nation, or that he was authorized by the purported 200 former employees to represent their interests. The certify records having discredited said statement, we accord no credibility to this aspect of the witness's testimony.

The appellants' second witness Mr. Harris G. Biah testified to similar accounts as outlined in the complaint and as had the first witness, stating that immediately following their redundancy, security guards were assigned at similar gates[posts] to which they were previously assigned.

When the appellants rested evidence in *toto*, the appellee produced four witnesses in persons of Col. James Paleh, Force Commander; Eric T. Moore, Office Boy; Lawrence Darkinson, Deputy Accountant and Emmanuel Kuman, Accountant.

All of the appellee's witnesses testified to accounts surrounding the appellants' redundancy which stemmed from a notice received from its client, the Embassy of the United States of America near Monrovia, that the guards be reduced from 220

to 178 due to the installation of security cameras and X-ray machines which had reduced the need to have the volume of guards previously stationed at the embassy's premises; that each redundant employee was paid their just severance pay in

accordance with the Labour Laws of Liberia; that they each signed a release discharging the management from any further claims and that they were offered employment opportunity in other areas of assignment but that they rejected same.

On October 8, 2008, the appellee rested with the production of both oral and documentary evidence and following final argument, the investigation made its findings on December 31, 2008.

We hereunder quote the relevant portion of the hearing officer's findings:

That the herein Complainants were gainfully employed by Defendant on various dates and years - from two (2) years up to 15 years - when they were made redundant.

2. That the Complainants admitted receiving their redundancy benefits, even though they alleged that the Ministry of Labor was not informed; and that they were not privileged to read the document/release, yet, they signed releases discharging Defendant from any and all future liabilities relating to employer and employee relationship;
3. That they alleged that one of their colleagues, Mr. Paul Saydee who insisted that they should read the contents of said document was dismissed instantly before the conclusion of said redundancy exercise;
4. That Complainants woefully failed to name one of the new employees who occupied the alleged posts and positions; neither did they subpoena Mr. Saydee who was allegedly summarily dismissed for pleading with Defendant to read or peruse said document/release signed by each of them;
5. That Defendant admitted executing redundancy by reducing its Security force from 220 to 178, as a consequence of security cameras installed at the U.S. Embassy, based upon the requests made by one Peter Valazquez, Regional Security Officer on August 26, 2005;
6. That the Ministry of Labor was not informed accordingly, even though complainants received their redundancy pay without any objection and signed the releases in favor of Defendant Inter-Con;
7. That the penalty for violation of Regulation #8 is not less than One Hundred and not more than Five Hundred United States Dollars;
8. That (the investigation is in possession of) affidavits from two of the

Complainants (Mr. Stanley S. Nyan and Wallace Vour) indicating that they were not part of the complaint filed before this Ministry, against the Defendant/Management.

9. That the Complainants wrongfully failed to prove their case by preponderance of evidence during the trial in consonance with the Law; Black's Law Dictionary, 1433 (4th Edition) defines a release as "the relinquishment, concession or giving up of a right, claim or privilege of a right, claim, or privilege, by a person in whom it exists or to whom it accrues or to the person against whom it might have been demanded or enforced".
10. That the Complainants having admitted signing releases in favor of Defendant/Management are barred from instituting any legal suit. (See the case: International Trust Company/International Bank (Liberia) Limited versus Reginald W. Doe, and Momo R. Garpi et-al Opinions of the Supreme Court, March Term 2004. Also, in the cases: Horton Versus Horton 14LLR, 57 (1960) and Monrovia Tobacco Company Versus Abraham 15LLR 502; Monrovia Construction Company versus Wazni; 23LLR, Page 58, (1974); Bong Mining Company versus Waytanbolo; 36LLR (1990).
11. That Defendant is not LIABLE for Wrongful Dismissal and evasion of pension as the Investigation is convinced of the reason given for the redundancy.

The Supreme Court has held that mere allegations are not proof and factual allegations pleaded must be proven at the trial, for it is only evidence alone which enables the Court to decide with certainty the matter in dispute, and the party that alleges a fact has the duty to establish during trial such proof by a preponderance of evidence. ILCR, 25,2(10 (2), 40LLR, 379, text at 383 (2001); 39LLR 609, text at 616 to 617 (1999)

RULING:

WHEREFORE, and in view of the facts and circumstances, the testimonies, the arguments advanced, coupled with the legal reliance *pro etcon*, We find Defendant/Management not liable for Unfair Labour Practice/Wrongful Dismissal. Accordingly said case is dismissed for want of merits, and Defendant/Management is hereby discharged from further answering. Notwithstanding, for procedural error or negligence; that of not informing the Ministry of Labour of the redundancy prior to carrying it out, see; Regulation #8, Section 12... Defendant/Management Inter-Con, is hereby fined the amount of Five Hundred (US\$500) United States Dollars, to be paid into Government Revenue, and a receipt presented to the Ministry to the effect in Seventy Two (72) hours, effective of the date of this ruling."

The appellants excepted to this ruling and filed a nine (9) count petition for judicial review before the National Labour Court for Montserrado County principally contending that the failure of the appellee to inform the Ministry of Labour about the redundancy exercise rendered their redundancy illegal; that as they were not allowed to read the releases before signing same and the Ministry of Labour not having attested to the releases, said releases are void *ab initio*; that the hearing officer committed a reversible error when he failed to recognize that new employees were assigned to the positions contrary to the Labour Law which mandates *inter alia*... "where employees are declared redundant, if the management desire to recruit, first preference must be given to the redundant employees;" and that the hearing officer's ruling was against the weight of the evidence.

The respondent management filed a sixteen (16) count returns substantially contending that the redundancy exercise was carried out in accordance with the Labour Law; that the intent, purpose and objective of the Labour Law on redundancy is to ensure that there is a valid and genuine reason for the redundancy and that the affected employees do in fact receive that which the law requires. The respondent further contended that the redundancy exercise was predicated upon a request from the US Embassy which required a reduction of security guards at its premises due to the installation of security cameras and the improvement of physical security structure at the Embassy; that the appellants were justly paid one month salary for each year of service in accordance with the Labour Law and that they were offered employment opportunity in other areas of assignment but they rejected same. The respondent also contended that the failure to inform the Ministry of Labour is not a ground for reversing a redundancy exercise carried out in accordance with law but that same is punishable by a fine. Hence, the hearing officer committed no reversible error.

On September 25, 2009, Judge Comfort S. Natt of the National Labour Court for Montserrado County, heard and denied the appellants' petition for judicial review. The basis for the judge's ruling were that the appellants did not deny receiving compensation for the time of service in accordance with the Labour Law and having voluntarily signed releases void of any fraud or undue influence, said releases constituted binding contracts which relieved the respondents from all liabilities; that the failure of the respondent to notify the Ministry about the redundancy exercise did not render the redundancy illegal but was instead punishable by a fine; and that the appellants failed to establish that new employees were re-employed in their respective positions.

The appellants excepted to and announced an appeal from the ruling of the National Labour Court and thereafter filed a six count bill of exceptions reciting similar contentions as in their complaint and petition for judicial review, and the witnesses' testimonies. We hereunder reproduce counts 1, 2, 3, & 5 of the appellants' bill of exception which we deemed relevant to the determination of this appeal. It is trite law

that the Supreme Court need not pass on all issues in the Bill of Exceptions but only as to those considered germane to the disposition of a cause. We accordingly quote the said counts verbatim below, to wit:

1. That your honor erred and made a reversible error when your honor failed and neglected to take into consideration, the appellants' contentions that the appellee declared the appellants redundant and subsequently replaced them with new employees which was a clear demonstration of Unfair Labor Practices.
2. That, Your Honor erred and made a reversible error when your honor failed to take into consideration the appellants argument that the majority of the appellant in these proceedings had worked for appellee for more than fourteen (14) to fifteen (15) years and that redundancy was intended deprive them of their pension benefits which constituted a clear demonstration of Unfair Labour Practices.
3. That you honor erred and made a reversible error when your honor failed to uphold and sustain the appellants' contention that the failure of the appellee to have informed the Ministry of Labour of its intent to redundant the appellants as required by Regulation No. 8 of the Ministry of Labour made such redundancy null and void in the face of the Law.
5. That your honor erred and made reversible error when your honor failed to take into account that the so called releases that were signed by the appellants were done deceptively because the appellants were never permitted to read the document nor were they given a copy thereof which the Supreme Court has held that releases issued through deception and misrepresentation are not a bar to the releases exerting their rights.

We shall address the contentions as they appeared in the appellants' bill of exceptions.

In count one of the bill of exceptions, the appellants alleged that having been declared redundant by the appellee, they were subsequently replaced by new employees contrary to the provision of the Labour Regulation which requires that in case of re-employment, first preference must be given to the redundant employees.

Here is how section 5, of Regulation No. 8, Redundancy Regulation reads:

"When subsequent new employment arises, the employer shall consider persons previously declared redundant for re-employment; failure on the part of any employer to do so shall constitute ground for an action of unfair labor practices against him."

From the reading of the above mentioned regulation, it is the intent and object of the framers that where redundancy is declared, no subsequent re-employment can be done without, as a matter of preference, according consideration to those employees previously declared redundant. This is the law and this Court is prohibited by law to add or subtract from legislation where the meaning is so plain and not inconsistent with law and practice in this jurisdiction. *Hussenni v. Brumskine*, *Supreme Court Opinion March Term 2013*; *Vijayaraman v. Xoanon*, 42LLR, 47 56 (2004), *Multinational Gas and Petrochemical Company v. Crystal Steamship Corporation*, 27 LLR, 198 205 (1978), *George v. Republic*, 14LLR 158 1.59 (1960).

However, the question we ask, is whether or not the appellee violated this provision of the Labour Law? To answer this question, we take recourse to and examine the evidence adduced by the appellants at the investigation to substantiate their claim that they were immediately replaced by new employees in positions which had been declared redundant. This allegation is couched in the testimony of the appellants' second witness, Mr. Harris G. Biah's as follows:

"...additionally, we were replaced on the jobs by some new employees who occupied our posts and positions. One major example would be the Senior Guard assigned out of the compound in front of the Embassy Gate one (1) located at Gibson Street in front of the Gray Stone and Benson Street. The Guards assigned at Embassy Gate 1 BPO1 first, second and third were all redundant and replaced; if you go there now, you will see Senior Guards standing in these very posts that management declared redundant..."

We recall and re-emphasize, that the essence of the appellee's business is to provide protection through the deployment of security guards at the premises of its client, like the US Embassy in the present case. The mere fact that the remaining 178 security guards were assigned or perhaps re-assigned at various guard posts that were already established by the embassy and at which the appellants were previously stationed does not suggest immediate replacement with new employees especially where there remained 178 security guards still deployed at the US Embassy. The nature of the appellee's business is not a categorized business comprising of various specializations and professional talents as its base for productivity; rather, the appellee's business is principally based on the provision of security through its guards who are assigned and re-assigned to various stations and guard posts as requested and designated by the appellee's clients. Hence, the assignment or reassignment of a security guard to a guard

post at a particular station cannot be equated to new employment contemplated by law especially where it is not proven. For illegal redundancy to lie in this particular case, the onus is upon the appellants to show that the employees seen at the various guard posts were not of the remaining 178 guards, which the appellants fell short of proving. Also, proof in this instance, especially coming from the testimony of a person who alleges illegal redundancy, should have been in the nature of an exhibit of employment records showing the time of recruitment and respective positions of the alleged new guards.

This Court has held in countless opinions that "mere assertion does not constitute proof, but must be supported by evidence so as to warrant a court or jury accepting it as true and that evidence alone enables the court to pronounce with certainty concerning the matter in dispute. *Pentee v. Tulay* 40LLR, 207 215 (2000); *Jorgensen v. know/and*, ILLR 266 267(1895). Also, it is the law that "he who alleges the existence of a fact must prove it and must do so by the best available evidence." Civil Procedure Law, Rev. Code 1:25.5 and 25.6, *Teah v. Andrews, et., al*, 39LLR 493 501(1999); *Harouni v. Mathies*, 38LLR, 27 35(1995); *Massaquoi et al. v. Dennis* 40LLR 698 704(2001).

We therefore hold that given the nature of the appellee's business which partook of assigning guards to the embassy's premises and at particular posts that were already in existence and needed to be guarded at all times, the mere fact that security guards were seen at the posts which some of the appellants were previously assigned does not constitute proof that new persons were re-employed in their stead.

In count 2 of the appellants' bill of exceptions they contended that majority of them had worked for up to a period of fourteen (14) and fifteen (15) years, respectively and were eligible or potentially eligible for pension and that the redundancy exercise was only executed to deprive them of their individual pension benefits contrary to the labor law.

This is how the above contention by the appellants was presented in their letter of complaint tendered at the Ministry of Labour and their brief filed before us:

"...the majority of the appellants worked for a period of fourteen (14) and fifteen (15) years with the Security System and were closer to pension as in keeping with law...seven persons worked for fourteen years, seven persons worked for fifteen years..."

Our labor law frowns on any act, constructive or expressed, of terminating the services of employees with the intent to avoid payment of pension benefits. The Labour Law states this principle as follows:

"Dismissal of an employee by an employer in order to avoid payment of a retirement pension is a violation of this Chapter and subject to the remedial procedure provided in Chapters 2 and 3 of this Title. *Labour Law, Rev. Code 18:2503*

The quoted provision of the law does not operate in a vacuum; for same to be applicable to a particular case, it must be shown that the dismissed employees are actually or potentially eligible for pension in keeping with the said law. The qualification of employees for pension benefits in this jurisdiction is predicated upon the occurrence of one out of two conditions: first, the employee must have attained the age of sixty (60) years and worked continuously for at least fifteen years (15); or second, the employee must have completed a continuous service of twenty-five (25) years irrespective of the attainment of age sixty (60).

The above is in consonance with section 2501 of the Labour Law, which provides *inter alia*:

"an employee within the application of this Chapter is entitled to receive from his employer retirement pension on retirement from an undertaking at the age of 60 and if such employee has completed at least fifteen years of continuous service; or he may retire at any age after he has completed twenty-five years of continuous service in such undertaking..."

In an attempt to substantiate their allegation that they had been redundant in order to deprive them of their pension benefits, the appellants inserted in their letter of complaint a table which contained the names of fourteen (14) individuals with various specifications including their respective rank, monthly salary, year of service, amount received from the appellee, total months being claimed, and total amount due, all for the purpose of calculating their redundancy benefits.

We hereunder reproduce the table, to wit:

	RANK	NAME	Monthly Salary (USD)	Nos. of years	Amount Received (USD)	Total Claimed (Months)	Total due (USD)
1.	Private	Wallace Vour	220.00	14	3,250.00	60	10,120.00
2.	Private	Stanley Nuah	220.00	14	2,901.00	60	10,120.00
3.	Private	Dominic	220.00	14	2,350.00	60	10,120.00
4.	Private	Morris Chea	220.00	14	3,050.00	60	10,120.00
5.	Private	Trokon	220.00	14	2,901.00	60	10,120.00
6.	Private	Johnson Gardea	220.00	14	2,350.00	60	10,120.00
7.	Private	James Gaye	220.00	14	2,850.00	60	10,120.00

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8.	Lieu.	Stephen T. Miamen	249.60	15	3,447.00	60	11,232.00
9.	Lieu.	Harris G. Diah	249.60	15	3,660.00	60	11,232.00
10.	Lieu.	John T. Miah	249.60	15	3,400.00	60	11,232.00
11.	Major	William Taylor	360.00	15	5,050.00	60	16,200.00
12.	Private	Peter Gardner	220.00	15	2,372.00	60	9,900.00
13.	Private	Joseph Yarh	220.00	15	2,350.00	60	9,900.00
14.	Private	Momolu Kollie	220.00	15	3,280.00	60	9,900.00
	TOTA						150,436.00

The table falls short of any proof indicating that the appellants were qualified or potentially qualified for pension as anticipated by the above quoted provision of the law, in that there is no showing that any of the individuals listed in the table had attained the age of 60 and had continuously worked for the appellee for at least fifteen years. Similarly and by the very display of the table, none of the individuals listed had worked continuously with the appellee for twenty-five years which could have cured the age requirement of the statute.

Moreover, the information contained in the table is in no way different from other allegations raised in the appellants letter of complaint as same is not supported by any iota of proof to the effect that it forms part of the appellants' employment record. The best and most relevant evidence in this instance would have been the appellee's employment records and/or bio data forms showing the appellants various dates of employment and ages. The appellants should have availed themselves of and applied for a writ of *subpoena duce tecum* to compel their employer to submit said records.

We therefore hold that the appellants did not present any evidence to substantiate their claim of eligibility or potential eligibility for pension and that the redundancy exercise

deprived them of said pension benefits, thus said claim must crumble.

In count 3 of the appellants' bill of exceptions they contended that the judge committed a reversible error when she failed to uphold and sustain their contention that the failure of the appellee to have informed the Ministry of Labour prior to conducting the redundancy exercise as required by Regulation No. 8 of the Ministry of Labour rendered their redundancy null and void.

It is the procedure in this jurisdiction that for any institution or agency to embark upon a redundancy exercise, the Ministry of Labour must be informed.

This is how section 1 of Regulation No. 8 reads:

" a) It **shall** be the duty of the employer desiring to declare any employee redundant to inform the Ministry of Labor in order for consultations to be held on the subject with the employer and the union concerned, or the employee;

b) the employer **shall** also be required to inform the union or workers representative concerned of the reasons for and the extent of the anticipated redundancy." (**Our emphasis**)

The provisions of the regulation although not discretionary but mandatory by the word 'shall' however, the self-same regulation also provides the penalty in the event of a violation or non-compliance, which does not include rendering the redundancy exercise null and void. The requisite provision of the law states as follow:

"any person, corporation, partnership, or other legal entity, who fails to observe the provisions of this Regulation, shall be subjected to a fine of not less than one hundred dollars and not more than five hundred dollars."
section 12, Regulation No. 8

The records show that the Ministry of Labour did apply the penalty when the appellee was fined an amount of US\$500 (Five Hundred United States Dollars), the maximum penalty fixed by the regulation, which compels us to hold that the failure by the appellee to inform the Ministry of Labour about the redundancy exercise does not render same null and void and especially in the face of the imposition of the fine for the violation.

In count five (5) of the bill of exceptions, the appellants contended that the judge committed reversible error by failing to consider their allegation of deception deployed by the appellee by denying them the opportunity to read the releases before affixing their signatures thereon.

During argument before us, the appellants contended that the releases were products of fraud and misrepresentation since they were not allowed to read same before appending their signatures thereto nor given copies after signing. Appellee counter argued that the appellants were each allowed to read the releases before affixing their

signatures; that even if the appellants were not made to read the releases, same cannot be deemed as fraudulent and misrepresentation because the appellants received their just and equitable compensation required by law upon being made redundant.

The wordings and contents of the releases being similar except for the amount of severance paid to each releaser and their respective signatures, we quote one of the releases as follow, to wit:

RELEASE

KNOW ALL MEN BY THESE PRESENTS: That I _____ for
and in consideration of the amount of _____ in hand paid receipt of
which is hereby acknowledged and incorporated by reference do hereby
RELEASE and FOREVER DISCHARGE Inter-Con Security Systems from any
and all liabilities, claims, travel, education, lunch, medical, break demands,
actions and damages that may arise or now exists growing out of my
REDUNDANCY with said Inter-Con Security Systems.

THAT I, _____ declare that I am of sound mind and fully
understand the purpose and content of this document. I further declare that
the signing of this agreement is not the result of any duress reward or hope
of reward or any undue influence whatsoever and I therefore have no
further claim or claims against said Company.

HENCE THIS RELEASE

This Court has held:

" while it is true that an execution of a release ordinarily discharges the
releasee from further obligations, notwithstanding, when the conditions
and circumstances under which said release was executed show
fraudulent motives on the part of the drafter, such fraud will vitiate the
contractual obligation created by the release *ab initio*." *LAMCO J. V.*
Operating Company v. Azzans, 31 LLR 23 35 (1983)

Also:

"the execution by an employee of a release of all claims for wages, or of his

rights against the employer under the Fair Labour Standards Act is void and ineffective, unless there has been full payment of the amounts due the employee. Consequently, the execution by an employee of a release of his right against the employer does not bar the employee from subsequently asserting these rights and does not constitute a defense by the employer to an action by the employee under the Fair Labour Standards Act." *NPA v. Massaquoi et al*, 36 LLR 195 202 (1996).

Further:

"The general rule of law is that a valid release conclusively estops the parties to revive the claims released and that the release completely discharges and extinguishes all rights and claims of the releasor against the releasee which are included in the release. The rationale behind this legal principle is that the release is a compromise agreement and as long as there is consensus *ad idem*, the release places a firm clamp on all the rights of the releasor. There is good common sense behind this legal principle as regards the court's practice in avoiding impairment of contractual obligations." 31 LLR, 23, 28 (1983); *LIB Cont. Art. 25*; 76 C. J. S. *Release*, §41.

Applying these principles of law to the present case, we observe that the appellants have not denied receiving their just compensation in lieu of their redundancy nor have they shown how their allegation of not being permitted to read the document nor given a copy thereof, constituted a deception or misrepresentation. More importantly, the appellants have not shown that the appellee paid them less than what is required by our Labour Law in such instances, that is, four weeks remuneration for each year of service. Further, the appellants also failed to obtain the testimony of Mr. Paul B. Saydee whom they claimed was allegedly out rightly dismissed and forfeited his benefits for asserting his right to read the release before signing. Accordingly, Mr. Saydee by all accounts would have been more than prepared to testify for the appellants.

To the contrary, the appellants have strenuously argued that the mere fact that they were not permitted to read the release, although having received their just benefits, this Court should set aside the release on grounds of deception and misrepresentation and declare their redundancy illegal. The allegation of deceit, misrepresentation or fraud must be proven, which we have already stated, the appellants failed to do.

We hold therefore that the appellants' mere allegation of not being permitted to read the document or given a copy thereof does not constitute deception or fraud, in the absence of proof being made by the appellants to that effect. Moreover, the appellants not having denied receiving their just compensation, the releases signed by them conclusively estop them from reviving their claim. We further hold that the appellants' not having denied that there existed a justifiable need for the redundancy exercise; having failed to

present any evidence to substantiate their claim of eligibility or potential eligibility for pension; having failed to proffer any evidence to substantiate their testimony of being replaced by new employees; the appellee having been fined an amount of US\$500 (Five Hundred United States Dollars), for its failure to notify the Ministry of Labour, the maximum penalty fixed for violation, ; and the appellants having duly executed valid, the judgment of the National Labour Court is hereby affirmed.

The Clerk of this Court is hereby ordered to send a mandate to the judge of the National Labour Court to resume jurisdiction and proceed in accordance with this Opinion. Costs are ruled against the appellants.

Judgment affirmed.

When this case was called for hearing, Counsellor Cooper W. Kruah of Henries Law Firm, appeared for the appellants. Counsellor Stephen B. Dunbar, Jr., of Dunbar & Dunbar, appeared for the appellee.